



Appeal Decision

Site visit made on 17 August 2026

by **A Hartley, LLB (Hons), Solicitor, MBA**

an Inspector appointed by the Secretary of State

Decision date: 7 September 2026

Appeal Ref: 6011428

36-40 Clayton Street, Newcastle upon Tyne NE1 5PF

- The appeal is made under Regulation 17 of the Town and Country Planning Act (Control of Advertisements) (England) Regulations 2007 against a refusal to grant express consent.
 - The appeal is made by Mark Wilkinson of Infinity Outdoor Limited against the decision of Newcastle upon Tyne City Council.
 - The application Ref 2024/1319/01/ADV.
 - The advertisement is described in the application as 'a temporary scaffold mounted "1-1" montage image shroud with an advertising banner located centrally within the shroud upon a fully working access scaffold.'
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Decision

1. The appeal is allowed and express consent is granted for a temporary scaffold mounted "1-1" montage image with an advertising banner located centrally within the shroud upon a fully working access scaffold at 36-40 Clayton Street, Newcastle upon Tyne NE1 5PF in accordance with the terms of the application Ref 2024/1319/01/ADV. The consent is for 12 months and is subject to the five standard conditions set out in Schedule 2 to the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (the Regulations) and the following additional condition:
 - 6) This consent shall expire 12 months from the date of this decision or when the scaffold is removed, whichever is the sooner, and unless further consent for continued display is granted, the advertisement to which this consent relates shall be removed on or before the expiry date.

Preliminary Matters

2. The Council altered the description of the advertisement. I have used the description given on the original application form.
3. The advertisement is already in situ. Consequently, consent is being sought retrospectively for the advertisement. I have considered the appeal on this basis.
4. The Council's reason for refusal refers to the advertisement conflicting with its development plan. However, the Regulations require that decisions are made only in the interests of amenity and public safety, as appropriate to each case. Therefore, although I have taken the development plan into account and the National Planning Policy Framework (the Framework), in so far as they are relevant, they have not been decisive considerations in my determination of this appeal.

5. The appeal site is within the Central Conservation Area (CA). When considering amenity, I am therefore mindful of the statutory duty set out in Section 72 of the Planning (Listed Buildings and Conservation Areas) Act 1990 (LBCA) that requires special attention be paid to the desirability of preserving or enhancing the character and appearance of a Conservation Area. However, for the avoidance of doubt, I have not applied Policy HE6 (4)-(6) of the Framework as these are not relevant in the context of the Regulations.
1. The building on which the advertisement is situated is Grade II listed. I have not applied section 66 of the LBCA as this statutory duty is not relevant to an advertisement consent application. However, I have considered the listed status of the building when considering the issue of amenity.
2. The Framework has been revised since the parties' submissions. While the referencing has changed, the substance of the Framework in relation to the issues in this appeal are not affected. It was not considered necessary therefore to seek further comments. I do not consider that this has prejudiced any of the parties and I have proceeded with the appeal on this basis.

Main Issue

3. It is agreed between the main parties that there is no unacceptable impact on public safety subject to conditions. I have no reason to disagree. The main issue is therefore the effect of the advertisement on amenity.

Reasons

4. The advertisement is situated on a scaffolding shroud on a Grade II listed building within the CA. The Planning Practice Guidance and Regulation 3(2) of the Regulations set out that factors relevant to amenity impacts include the general characteristics of the locality, including the presence of any features of historic, architectural, cultural or similar interest.
5. The advertisement is within the commercial core of Newcastle City Centre, where I observed advertisements to be prominent. The significance of the CA lies in its historic architecture and townscape, including the Grade II listed Regency period terrace of which the appeal site forms part.
6. My attention is drawn to case law¹ that supports the baseline for assessing the impact of an advertisement on a listed building to be not the unfettered façade of the building, but the existing condition and scaffold shroud.
7. The advertisement was the subject of a previous temporary consent², where it was considered appropriate to the locality in terms of scale and design. I attach some weight to this decision.
8. My attention is also drawn to a structural report and correspondence³ submitted by the appellant that demonstrates the complexity of the works, indicating why these have not been carried out within the original timescale. I attach some weight to this expert evidence.

¹ Southwark LBC v SSHCLG & Blow Up Media Ltd [2025] EWHC 1556

² 2023/1206/01/ADV

³ Appendices 5 & 7 Appellant's Statement.

9. Policy DM22 of the Core Strategy and Urban Core Plan for Gatehead and Newcastle upon Tyne (CS) (2015) is materially relevant in that it concerns temporary shroud advertisements. It requires such advertisements to be for no more than 12 months or until the scaffolding is removed whichever is earlier.
10. It is accepted that the advertisement has already been in place for more than 12 months. Evidence supports that works that are necessary to preserve the listed building are ongoing and complex in nature. A further consent limited to 12 months would accord with policy DM22, and the advertisement also meets the requirement that a 1:1 image of the building as well as the advertisement appears on the shroud.
11. Had the listed building façade been in a good state of repair, the advertisement would cause harm to the architectural value of the listed terrace, as set out by Heritage England⁴. However, the context is different, due to the scaffolding and shroud evident on the listed building, whilst it undergoes necessary repair works. Even if the advertisement were not present, the scaffolding and shroud would continue to disrupt the flow of historic elevations along Clayton Street.
12. I have had regard to the commercial nature of the city centre, extent of existing advertisements, the scaffolded and shrouded listed building, and the previous temporary consent. I have also considered the townscape contribution the crossroads make to the character of the CA. Due to the temporary nature of the advertisement, I am satisfied that it does not cause harm to the Grade II listed building, which is an important feature of the CA, nor does it cause irreversible change to the townscape.
13. Overall, in the specific circumstances, the temporary advertisement does not cause harm to amenity. In reaching this conclusion I have had special regard to the effect on the significance of the CA and the shrouded listed building. I consider that their significance would be preserved due to the temporary nature of the advertisement pending necessary preservation works to the listed building.

Other Matter

14. The Council refers to illumination in the reason for refusal. However, the application form does not state that the advertisement is illuminated.

Conditions

15. The five standard conditions have been applied in accordance with the Regulations. An additional condition (Condition 6) has been imposed in the interests of amenity.

Conclusion

16. For the reasons given above I conclude that the display of the advertisement is not detrimental to the interests of amenity or public safety, therefore the appeal should be allowed.

A Hartley

INSPECTOR

⁴ Heritage England Consultation response dated 24 July 2026 from Martin Lowe.